

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
FRIDAY, MAY 1, 2026**

These are the tentative rulings for civil law and motion matters set at **2:00 p.m. on Friday, May 1, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Thursday, April 30, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER ALBERT A. ERKEL** and if oral argument is requested, it will be heard in **Department 33**, located at 10820 Justice Drive, Roseville, California 95678.

1. M-CV-0085411 Riedel, Bruce v. Courtesy Towing

Defendant's Motion to Quash Deposition Subpoena, For Stay of Deposition and Protective Order

Defendant's motion to quash is granted. There is no evidence that the subpoena was ever properly served on Mr. Sacharaski, nor is there any evidence that plaintiff provided defendant with proper notice of the deposition. The other issues raised in the motion are moot.

Defendant's request for attorney's fees against Mr. Riedel is granted in the amount of \$920.00.

2. M-CV-0090108 Discover Bank v. Paul Albrecht

Plaintiff's Motion to Deem Requests For Admissions Admitted.

Plaintiff Discover Bank's motion to deem the truth of matters specified in Requests For Admission, Set No. One propounded on defendant Paul Albrecht is granted.

Plaintiff's request for attorney's fees and costs against Mr. Albrecht is granted in the amount of \$697.50.

3. S-CV-0049514 Liu, Ping v. The Original Mowbrays Tree Service

Motion to Compel Production of Documents by Plaintiff's Expert Witness, Randall C. Epperson, PhD.

Defendant's motion is granted, subject to the parties entering into a protective order protecting the confidentiality of the documents.

4. S-CV-0049572 Roe, Jane v. Doe 1

Plaintiff's Motion to Compel Discovery

Date reserved, but no motion filed.

5. S-CV-0050494 Beaubien, Nicole v. Cinemark

Motion to Compel IME

Appearance of the parties is required on May 1, 2026 at 2:00 p.m. in Department 33. Counsel are directed to be prepared to discuss dates that are available for the IME.

6. S-CV-0053651 Langner, Karla v. Nolivo, Girolamo

Defendant Allison James of California, Inc.'s Motion to Compel Responses to Special Interrogatories, Set One, Propounded by Defendant to Plaintiff Karla Langner

Interrogatory No. 1 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 3 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 4 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 6 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 7 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 9 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 10 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 12 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 13 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 15 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 16 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Interrogatory No. 18 – All objections are overruled. Plaintiff is to respond to this interrogatory.

Plaintiff is to provide responses no later than June 1, 2026.

Defendant Allison James of California, Inc.'s request for monetary sanctions against plaintiff is granted in the amount of \$1,710. Such sanctions shall be paid no later than June 1, 2026.

Defendant Allison James of California, Inc.'s request for monetary sanctions against plaintiff's counsel is denied.

Defendant Allison James of California, Inc.s' Motion to Compel Responses to Request for Production of Documents, Set One, Propounded by Defendant to Plaintiff Karla Langner

Request For Production No. 1 – All objections are overruled. Plaintiff is to respond and comply with the request.

Request For Production No. 2 – All objections are overruled. Plaintiff is to respond and comply with the request.

Request For Production No. 3 – All objections are overruled. Plaintiff is to respond and comply with the request.

Request For Production No. 4 – All objections are overruled. Plaintiff is to respond and comply with the request.

Request For Production No. 5 – All objections are overruled. Plaintiff is to respond and comply with the request.

Request For Production No. 6 – All objections are overruled. Plaintiff is to respond and comply with the request.

Plaintiff is to provide responses and documents no later than June 1, 2026.

Defendant Allison James of California, Inc.'s request for monetary sanctions against plaintiff is granted in the amount of \$1,010. Such sanctions shall be paid no later than June 1, 2026.

Defendant Allison James of California, Inc.'s request for monetary sanctions against plaintiff's counsel is denied.

Defendant Allison James of California, Inc.s' Motion to Compel Responses to Request for Admission, Set One, Propounded by Defendant to Plaintiff Karla Langner

Attached to plaintiff's response are supplemental responses. The parties have not had a meet and confer on those supplemental responses.

Appearance of the parties is required on May 1, 2026, at 2:00 p.m. in Department 33.

Defendant Allison James of California, Inc.s' Motion to Compel Responses to Form Interrogatories, Set One, Propounded by Defendant to Plaintiff Karla Langner

Attached to plaintiff's response are supplemental responses. The parties have not had a meet and confer on those supplemental responses.

Appearance of the parties is required on May 1, 2026, at 2:00 p.m. in Department 33.

7. S-CV-0053853 Francisco Benavidez v. John Mourier Construction

Defendant's Motion to Compel Deposition

Appearance of the parties is required on May 1, 2026 at 2:00 p.m. in Department 33. Counsel are directed to be prepared to discuss dates that are available for the subject deposition.